

COMMONWEALTH OF MASSACHUSETTS

Declaration of Restrictive Covenants

I, Peter J. Shulman, of 193 Main Street, Boxford, Essex County, Massachusetts, for the benefit of certain land owned by me off Main Street known as "Peabody Meadow" and referred to on the Boxford Assessors Maps as Parcel 28-1-34 further described in a deed from the Inhabitants of the Town of Boxford and the Boxford Conservation Commission recorded in Essex County (Southern District) Registry of Deeds in Book 10274, Page 226 (the "Benefitted Land") without consideration but in order to preserve open space and the character of the area hereby subject the following property to the terms of this Declaration of Restrictive Covenants:

A certain parcel of land comprising approximately 17.1 acres more or less off Main Street Boxford, Essex County described as Boxford Assessors' Lot 28-1-9. Being the same premises described in a deed from Edythe K. Shulman to Peter J. Shulman dated May 2, 1981 and recorded with Essex County (Southern District) Registry of Deeds in Book 6815 Page 169 (the "Property").

I hereby declare that the Property shall hereafter be subject to the restriction that not more than one single family dwelling together with its associated driveway, parking areas, garages, utilities including without limitation a subsurface sewage disposal system and usual residential recreational amenities such as for example and not by way of limitation a swimming pool, tennis courts, carriage houses, utility sheds, barns or cabanas or other amenities or structures appurtenant to one single family dwelling. The restriction is for the benefit of the Benefitted Land and may be enforced by the owners of the Benefitted Land from time to time.

Witness my hand and seal this _____ day of _____, 1997.

Peter J. Shulman

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Essex, ss.

_____, 1997

Then personally appeared the above-named Peter J. Shulman and acknowledged the foregoing instrument to be his free act and deed before me,

Notary Public

My commission expires: _____

Note:

It is proposed that the Benefitted Land, "Peabody Meadow", parcel 28-1-34, be conveyed to BOLT/BTA as part of this transaction.

BOLT/BTA would then have the exclusive right to enforce the Restrictive Covenant.

*Sub for reference
noted 2-1-97*